

Microsoft - Microsoft Cloud Platform Agreement 2

Enterprise Cloud Platform Enrollment and Product Terms

Contract ref CTR-061. Vendor ref VEN-MICROSOFT. Term 2023-01-29 to 2027-01-28. Notice deadline 2026-09-30. Document status: synthetic executed agreement for AbarVa Source testing.

Commercial field	Value
Annual contract value	\$35,800,000
Actual annual spend baseline	\$28,289,093
Total committed value	\$143,100,000
Decision owner role ref	LDR-057
Scope summary	Azure committed consumption, Microsoft 365 E5, Power BI Premium capacity, GitHub Copilot Business seats, and Unified Support for collaboration, analytics, airport operations, finance analytics, and platform engineering.

1. Services and Business Scope

1. Statement of Scope

The agreement covers Azure committed consumption, Microsoft 365 E5, Power BI Premium capacity, GitHub Copilot Business seats, and Unified Support for collaboration, analytics, and platform engineering.

Extraction class: scope. Ledger: scope. Concept: contract.scope_summary.

2. Fees and Commercial Schedule

2. Annual Contract Value

Annual contract value is USD 35,800,000, subject to the enrollment, product terms, and pricing schedule in Exhibit A.

Extraction class: contract_term. Ledger: decision. Concept: contract.annual_value.

3. Total Committed Value

Total committed value across the term is USD 143,100,000, excluding taxes and separately approved change orders.

Extraction class: contract_term. Ledger: decision. Concept: contract.total_committed_value.

4. Actual Annual Spend Baseline

The spend baseline used for optimization is USD 28,289,093 of actual annual spend for the current measurement year.

Extraction class: payment. Ledger: economics. Concept: contract.actual_annual_spend.

5. Material Pricing Lines

The pricing schedule contains five material spend components: Azure committed consumption, Microsoft 365 E5, Power BI Premium capacity, GitHub Copilot Business, and Unified Support.

Extraction class: rate_card. Ledger: scope. Concept: contract.pricing_line_count.

3. Usage, Overage, and Entitlement Management

6. Commitment and License Rebalance

Customer may rebalance cloud commitment and reclaim unused licenses at renewal when monthly admin, FinOps, and usage exports demonstrate sustained under-consumption.

Extraction class: usage. Ledger: avoided_cost. Concept: usage.entitlement_reclaim.

4. Service Levels and Credits

7. Service Credit Formula

If availability, support response, or priority incident resolution falls below the applicable product target, Customer earns a service credit against affected monthly fees subject to claim requirements.

Extraction class: service_credit. Ledger: recoverable_leakage. Concept: sla.credit_formula.

8. Service Credit Claim Window

Customer must submit service-credit claims within 45 days after the monthly SLA report or support incident record is available.

Extraction class: service_credit. Ledger: recoverable_leakage. Concept: sla.credit_claim_window_days.

9. Service Credit Cap

Aggregate service credits are capped at 10 percent of affected monthly fees for the applicable service month.

Extraction class: service_credit. Ledger: recoverable_leakage. Concept: sla.credit_cap_pct.

5. Renewal, Termination, and Exit

10. Renewal Notice Deadline

The current term expires on 28 January 2027. Written non-renewal, commitment rebalance, or renegotiation notice must be delivered no later than 30 September 2026.

Extraction class: renewal. Ledger: leverage. Concept: contract.notice_deadline.

11. Auto-Renewal

The agreement does not automatically renew unless the parties execute a renewal enrollment or extension document.

Extraction class: renewal. Ledger: leverage. Concept: contract.auto_renew.

6. Benchmarking and Price Protection

12. Benchmarking Right

Customer may compare enterprise discount, support fee, and product-unit pricing against current market benchmarks and request commercial review during renewal.

Extraction class: benchmark. Ledger: negotiated_improvement. Concept: contract.benchmarking_clause.

13. Price Protection

Renewal price increases for like-for-like scope are capped at 5.5 percent annually unless usage, product mix, or regulatory requirements materially change.

Extraction class: contract_term. Ledger: negotiated_improvement. Concept: contract.price_uplift_cap.

7. Audit, Reporting, and Invoice Review

14. Invoice and Usage Audit Right

Customer may audit invoices, Azure consumption calculations, license assignment, support charges, and rate-card application once per contract year on thirty days written notice.

Extraction class: invoice. Ledger: recoverable_leakage. Concept: contract.audit_right.

8. Security, Privacy, and AI Data Use

15. Security, Privacy, and AI Data Use

Vendor must process Customer Data only for contracted cloud services, maintain SOC 2 Type II and ISO-aligned controls, provide subprocessors list updates, and may not train generalized AI models on Customer Data without written approval.

Extraction class: security_privacy. Ledger: evidence. Concept: contract.security_privacy.

9. Statements of Work and Change Orders

16. Change Order Control

No support expansion, rate change, professional-services work, or additional cloud commitment is billable unless documented in an executed order, SOW, or change order referencing this agreement.

Extraction class: change_order. Ledger: recoverable_leakage. Concept: contract.change_order_control.

Exhibit A - Pricing Schedule

SKU or service	Description	Quantity or driver	Annual value
MS-AZ-COMMIT	Azure committed consumption	Annual commitment	\$17,200,000
MS-M365-E5	Microsoft 365 E5	38,200 user-months	\$19,577,880
MS-PBI-PREM	Power BI Premium capacity	42 capacity-months	\$2,444,400
MS-GH-COPILOT	GitHub Copilot Business	3,700 seat-months	\$843,600
MS-USUPPORT	Unified Support	Annual fee	\$5,734,120

Exhibit B - Evidence and Reporting Obligations

Vendor must support monthly reporting for invoices, service credits, usage, support incidents, rate-card application, and renewal quote history. Customer may use these reports for contract optimization, renewal governance, and finance-confirmed value tracking.

Exhibit C - Privacy and AI Data Use

No personal employee names, personal emails, phone numbers, or employee IDs are required for AbarVa extraction. Owner roles, role references, and system record identifiers are sufficient for sourcing analysis and auditability.